



CHAPTER 32.

An Act to make provision with respect to Copyright in works first published or made in an enemy country during the present War. A.D. 1916.
[10th August 1916.]

WHEREAS doubts have arisen with respect to the existence of copyright in works first published or made in an enemy country during the present war, the copyright wherein would, had a state of war not existed, have vested in any person as the first owner thereof by virtue of the application to an enemy country of any Order in Council made under the Copyright Act, 1911, and it is expedient to make such provision as is hereinafter contained with respect to copyright in such works : 1 & 2 Geo. 5.
c. 46.

Be it therefore enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1. Copyright in all such works, whether first published or made after or before the passing of this Act, shall be deemed to vest or to have vested in the Public Trustee in his capacity as Custodian under the Trading with the Enemy Amendment Act, 1914; and the Public Trustee shall, subject to regulations made by the Board of Trade, have all such powers, rights, and remedies in relation to the work as such person as aforesaid would, had a state of war not existed, have had; and all copyrights so vested in the Public Trustee, and any money arising from the exercise of his rights as the owner of any such copyright, shall be dealt with by him in like manner as property vested in him under the Trading with the Enemy Amendment Act, 1914, and section five of that Act as amended by any subsequent enactment shall apply accordingly : Vesting in Public Trustee copyright in works published or made in enemy territory.
5 & 6 Geo. 5.
c. 12.

Provided that where, before the passing of this Act, any person has taken any action whereby he has incurred expenditure or liability in connexion with the reproduction or performance of any such work as aforesaid, the Public Trustee shall, on

[CH. 32.] *Trading with the Enemy (Copyright)* [6 & 7 GEO. 5.]
Act, 1916.

A.D. 1916. application for the purpose being made within six months after the passing of this Act, grant to him a licence to reproduce or perform the work on such terms and conditions as, in the opinion of the Public Trustee, are fair and reasonable.

Short title
and construc-
tion.

2. This Act may be cited as the Trading with the Enemy (Copyright) Act, 1916, and shall be construed as one with the Trading with the Enemy Amendment Act, 1914.

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FOR

FREDERICK ATTERBURY, Esq., C.B., the King's Printer of Acts of Parliament.